



TOGETHER WE HAVE OVERCOME. TOGETHER WE SHALL OVERCOME

THE AMERICANS WITH DISABILITIES ACT (1990)

IN CONTEXT

FOCUS

Equal rights

BEFORE

1964 The Civil Rights Act aims to end segregation in the US on the basis of race.

1965 The Voting Rights Act bans discriminatory practices that prevent some American citizens from exercising their right to vote.

1973 The Rehabilitation Act outlaws discrimination against the disabled in any federally funded program in the US.

AFTER

1992 The Equal Employment Opportunity Commission begins enforcing employment protections that are laid down in the ADA.

2000 The EU's Framework for Equal Treatment in Employment and Occupation includes protections for disabled workers.

The 1990 Americans with Disabilities Act (ADA) aimed to guarantee “the full civil and human rights of people with disabilities.” The government wanted to make it clear that society should encourage and enable people with disabilities to make the fullest possible contribution to American life. The ADA outlawed employment discrimination against those with disabilities, and every employer with more than 15 workers had to “accommodate” any such employee’s “reasonable” needs—unless it caused the company undue hardship.

The ADA also required that any building or business open to the public—such as schools, hotels, health clubs, and stores—had to provide easier access and could not discriminate against those with disabilities. Telecommunications and transportation—buses, trains, planes, even cruise ships—faced similar obligations. In 2008, the ADA Amendments Act broadened the ADA’s scope, and the definition of disability, to protect more people.



President George H. W. Bush signed into law the Americans with Disabilities Act—the first comprehensive civil rights law for people with physical and mental disabilities—on July 26, 1990.

Although the legislation showed that the US was in the vanguard of disability legislation, the results have been mixed. Many smaller businesses complained about the high costs of compliance. In 1990, 70 percent of “significantly” disabled citizens were unemployed; by 2010, the figure was unchanged. Organizations that fail to comply with the employment sections of the ADA face no sanctions beyond making good on their breaches. ■

See also: The Universal Declaration of Human Rights 222–229 ■ The European Convention on Human Rights 230–233 ■ The Civil Rights Act 248–253